

**Superior Court of the State of California
County of Orange**

**Tentative Rulings
Law and Motion Calendar
Department C23
Honorable David J. Hesseltine**

Hearing Date and Time: July 16, 2026, at 2:00 p.m.

Court Reporters: Official court reporters (i.e., court reporters employed by the court) are **NOT** typically provided for law and motion matters in this department. If a party desires a record of a law and motion proceeding, it is that party's responsibility to provide a court reporter, unless the party has a fee waiver and timely requests a court reporter in advance of the hearing (see link at end of this paragraph for further information). Parties must comply with the Court's policy on the use of privately retained court reporters, which may be found at the following link: [Civil Court Reporter Pooling](#). For additional information regarding court reporter availability, please visit the court's website at [Court Reporter Interpreter Services](#).

Tentative Rulings: The court endeavors to post tentative rulings on the court's website no later than 12:00 noon on the date of the afternoon hearing. Tentative rulings will be posted case by case on a rolling basis as they become available. Jury trials and other ongoing proceedings, however, may prevent the timely posting of tentative rulings, and a tentative ruling may not be posted in every case. Please do not call the department for tentative rulings if one has not been posted in your case.

The court will not entertain a request to continue a hearing or any document filed after the court has posted a tentative ruling.

Submitting on Tentative Rulings: If all counsel intend to submit on the tentative ruling and do not desire oral argument, please advise the courtroom clerk or courtroom attendant by calling (657) 622-5223. Please do not call the department unless **ALL** parties submit on the tentative ruling. If all sides submit on the tentative ruling and advise the court, the tentative ruling shall become the court's final ruling and the prevailing party shall give notice of the ruling and prepare an order for the court's signature if appropriate under California Rules of Court, rule 3.1312.

Non-Appearances: If no one appears for the hearing and the court has not been notified that all parties submit on the tentative ruling, the court shall determine whether the matter is taken off calendar or the tentative ruling becomes the final ruling. The court also may make a different order at the hearing. (*Lewis v. Fletcher Jones Motor Cars, Inc.* (2012) 205 Cal.App.4th 436, 442, fn. 1.)

Appearances: Department C23 conducts non-evidentiary proceedings, such as law and motion hearings, remotely by Zoom videoconference pursuant to Code of Civil Procedure section 367.75 and Orange County Local Rule 375. Any party or attorney, however, may appear in person by coming to Department C23 at the Central Justice Center, located at 700 Civic Center Drive West in Santa Ana, California. All counsel and self-represented parties appearing in-person must check in with the courtroom clerk or courtroom attendant before the designated hearing time.

All counsel and self-represented parties appearing remotely must check-in online through the court's civil video appearance website at

<https://www.occourts.org/media-relations/civil.html> before the designated hearing time. Once the online check-in is completed, participants will be prompted to join the courtroom's Zoom hearing session. Participants will initially be directed to a virtual waiting room pending the start of their specific video hearing. Check-in instructions and instructional video are available at <https://www.occourts.org/media-relations/aci.html>. The Court's "Appearance Procedures and Information--Civil Unlimited and Complex" and "Guidelines for Remote Appearances" also are available at <https://www.occourts.org/media-relations/aci.html>. Those procedures and guidelines will be strictly enforced.

Public Access: The courtroom remains open for all evidentiary and non-evidentiary proceedings. Members of the media or public may obtain access to law and motion hearings in this department by either coming to the department at the designated hearing time or contacting the courtroom clerk at (657) 622-5223 to obtain login information. For remote appearances by the media or public, please contact the courtroom clerk 24 hours in advance so as not to interrupt the hearings.

NO FILMING, BROADCASTING, PHOTOGRAPHY, OR ELECTRONIC RECORDING IS PERMITTED OF THE VIDEO SESSION PURSUANT TO CALIFORNIA RULES OF COURT, RULE 1.150 AND ORANGE COUNTY SUPERIOR COURT RULE 180.

#	Case Name Case Number	Tentative
1.	<i>Bill Me Later, Inc. vs. Bella Vie Water, LLC</i> <i>2026-01563743</i>	Before the court is the petition to confirm contractual arbitration award filed on April 14, 2026, by petitioner Bill Me Later, Inc., as servicing agent for WebBank (Petitioner). As more fully set forth below, the petition is GRANTED. Petitioner seeks to confirm the arbitration award in Petitioner's favor and against respondents Bella Vie Water, LLC and Minh Van Phan (collectively, Respondents) in the amount of \$86,821,95. The petition complies with Code of Civil Procedure section 1285.4 by attaching a copy of the parties' arbitration agreement, identifying the arbitrator, and attaching a copy of the arbitration award. Given petition complies with section 1285.4 and has been duly filed and served, the court must confirm the award unless it corrects the award and confirms it as corrected, vacates the award, or dismisses the proceeding. (Code Civ. Proc., § 1286.) Respondents have not filed any opposition or otherwise sought to correct or vacate the award. Accordingly, the award must be confirmed. Based on the foregoing, the petition is GRANTED and the award hereby is CONFIRMED. Petitioner's counsel is ordered to give notice of this ruling.

2.	<i>Bill Me Later, Inc. vs. Oneness Labs, LLC</i> 2026-01563738	Before the court is the petition to confirm contractual arbitration award filed on April 14, 2026, by petitioner Bill Me Later, Inc., as servicing agent for WebBank (Petitioner). As more fully set forth below, the petition is GRANTED. Petitioner seeks to confirm the arbitration award in Petitioner's favor and against respondents Oneness Labs, LLC and Peter Nguyen (collectively, Respondents) in the amount of \$118,956.96. The petition complies with Code of Civil Procedure section 1285.4 by attaching a copy of the parties' arbitration agreement, identifying the arbitrator, and attaching a copy of the arbitration award. Given petition complies with section 1285.4 and has been duly filed and served, the court must confirm the award unless it corrects the award and confirms it as corrected, vacates the award, or dismisses the proceeding. (Code Civ. Proc., § 1286.) Respondents have not filed any opposition or otherwise sought to correct or vacate the award. Accordingly, the award must be confirmed. Based on the foregoing, the petition is GRANTED and the award hereby is CONFIRMED. Petitioner's counsel is ordered to give notice of this ruling.
3.	<i>UniFirst Corporation vs. ICC Collision Center</i> 2026-01560581	Before the court is the petition by Unifirst Corporation (Petitioner) to confirm contractual arbitration award in the amount of \$67,026.10 entered on September 18, 2025, against respondent ICC Collision Center dba Autobahn Collision Center, Inc. (Respondent). As more fully set forth below, the petition is CONTINUED TO SEPTEMBER 10, 2026, AT 2:00 P.M. IN DEPARTMENT C23, for service of proper notice of hearing. The petition to confirm an arbitration award and the notice of hearing on such petition must be served at least 10 days before the hearing. (Code Civ. Proc., §§ 1290.2, 1290.4.) Proof of such service must be filed with the court at least five court days before the hearing. (Cal. Rules Ct., rule 3.1300(c).) Here, Petitioner failed to timely file any proof of service showing proper service of notice of hearing on Respondent. The proof of service Petitioner filed shows Respondent was served with the summons, civil case coversheet, and petition to confirm contractual arbitration award. Petitioner has not filed any notice of this hearing or proof of service showing Respondent was served with notice. The court served notice on Petitioner, but it cannot serve Respondent

		because Respondent has not yet appeared and therefore has no address of record. Based on the foregoing, the Court will CONTINUE the hearing as set forth above for Petitioner to provide proper notice of hearing to Respondent. The proof of service must be filed at least five court days before the hearing. Petitioner is ordered to give notice.
4.	<i>Jones vs. Safeco Insurance Company of America</i> <i>2026-01561751</i>	Before the court is a petition by "Kassidy Jones, Urszula Jones, Oliver Jones by and through is guardian and Landon Jones by and through his guardian" (collectively, Petitioners) to confirm a contractual arbitration award entered in their favor and against respondent Safeco Insurance Company of America (Respondent) on December 18, 2025. As set forth herein, the petition is DENIED WITHOUT PREJUDICE to a new or amended petition addressing the deficiencies identified below. The current petition seeks to confirm an arbitration award in Petitioners' favor and against Respondent as follows: Kassidy Jones - \$30,017.67, Urszula Jones - \$26,422.34, Oliver Jones - \$7,545.67 and Landon Jones - \$13,590.66. Although the petition states two of the four Petitioners are two minors and it is brought on their behalf by and through their guardian, there has been no order appointing a guardian ad litem for the minors. "When a minor, a person who lacks legal capacity to make decisions, or a person for whom a conservator has been appointed is a party, that person shall appear either by a guardian or conservator of the estate or by a guardian ad litem appointed by the court in which the action or proceeding is pending, or by a judge thereof, in each case." (Code Civ. Proc., § 372(a).) Further, there is no arbitration agreement attached to the petition. Paragraph 4 of the petition states "a copy of the agreement [to arbitrate] is submitted as Attachment 4(b) and incorporated herein by this reference." Attachment 4(b), however, is the Judicate West agreement and not the arbitration agreement between Petitioners and Respondent. (See Code Civ. Proc., §1285.4 [petition shall "Set forth the substance of or have attached a copy of the agreement to arbitrate unless the petitioner denies the existence of such an agreement"].) Presumably, the arbitration agreement is included in the insurance policy. Finally, there is no evidence of proper service of the petition and notice of hearing. The petition to confirm an arbitration award and the notice of hearing on such petition must be served at least 10 days before the hearing. (Code

		Civ. Proc. § 1290.2.) Proof of such service must be filed with the court at least five court days before the hearing. (Cal. Rules Ct., rule 3.1300(c).) Code of Civil Procedure section 1290.4 establishes the requirements regarding the method of service for a petition to confirm an arbitration award: "(a) A copy of the petition and a written notice of the time and place of the hearing thereof and any other papers upon which the petition is based shall be served in the manner provided in the arbitration agreement for the service of such petition and notice. "(b) If the arbitration agreement does not provide the manner in which such service shall be made and the person upon whom service is to be made has not previously appeared in the proceeding and has not previously been served in accordance with this subdivision: "(1) Service within this State shall be made in the manner provided by law for the service of summons in an action. "(2) Service outside this State shall be made by mailing the copy of the petition and notice and other papers by registered or certified mail. Personal service is the equivalent of such service by mail. Proof of United States Post Office bearing the signature of the person on whom service was made. Notwithstanding any other provision of this title, if service is made in the manner provided in this paragraph, the petition may not be heard until at least 30 days after the date of such service. "(c) If the arbitration agreement does not provide the manner in which such service shall be made and the person on whom service is to be made has previously appeared in the proceeding or has previously been served in accordance with subdivision (b) of this section, service shall be made in the manner provided in Chapter 5 (commencing with Section 1010) of Title 14 of Part 2 of this code." Here, the proof of service attached to the petition shows service by email to the Law Office of Jeffrey Cabot Myers. There are multiple problems with this. First, that is a different firm than the firm on whom the arbitrator served the arbitration award on Respondent's behalf. Second, there is no proof of service showing the petition was served on Respondent in accordance with section 1290.4—i.e., in the manner provided for service of summons. Summons generally cannot be served on counsel by eservice absence an agreement.
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		Moreover, there is no indication Petitioners served notice of this hearing. The court endeavored to serve notice on all parties identified in the arbitration award, but the foregoing switch in counsel has complicated those efforts. Based on the foregoing, the petition is DENIED WITHOUT PREJUDICE to all Petitioner to address these concerns through a new filing. Petitioners are ordered to give notice.
5.	<i>In re: 206-208 W. Electric Ave., La Habra, CA 90631</i> <i>2026-01574411</i>	Before the court is the hearing on the order to show cause why an order for sale of dwelling should not issue relating to property located at 206-208 W. Electric Avenue, La Habra, California 90631, and owned by judgment debtors the Peter Seh Living Trust 2001 dated September 13, 2001, and Jonathan Seh (collectively, Debtors). The order to show cause was entered on June 4, 2026, based on the application of judgment creditors Benjamin Kirk and Butterfield Property LLC (collectively, Creditors). As more fully set forth below, the hearing on the order to show cause is CONTINUED TO THURSDAY, SEPTEMBER 24, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Creditors to establish proper service of all necessary documents in accordance with Code of Civil Procedure section 704.770. The court previously found Creditors' application satisfied the statutory requirements and therefore the court entered the order to show cause and instructed Creditors to give notice. (Code Civ. Proc., §§ 704.750, 704.760, 704.770; see ROA 17.) The court specifically stated in the order that all parties must be served as required by Code of Civil Procedure section 704.770. Here, Creditors fail to establish proper service in accordance with Code of Civil Procedure section 704.770. That code section required Creditors to serve (1) a copy of the order to show cause, (2) a copy of the application of the judgment creditor for the order to show cause, and (3) a copy of the notice of the hearing in the form prescribed by the Judicial Council. Those documents must be served on the Debtors either personally or by mail. Those same documents also must be personally served on any occupant of the dwelling or, if there is no occupant present at the time service is attempted, the documents must be posted in a conspicuous place at the dwelling. Creditors filed proofs of service showing they effectuated substitute service on the occupants of the property by serving the application for order of sale and the order to

		show cause. The proofs of service, however, fail to show Creditors served the notice of the hearing in the form prescribed by the Judicial Council. As for service on Debtors, Creditors filed a document entitled "Proof of Service by Mailing of Order to Show Cause." The documents attached, however, are receipts for mailing; they are not proofs of service. Those receipts do not comply with the requirements of the Code of Civil Procedure for proofs of service, and they do not identify what documents were served (as noted above, three documents had to be served). Moreover, they do not show the capacity in which any party is served. One of the Debtors is a trust, and therefore must be served by service on the trustee in that capacity. The court further notes, on July 9, 2026, Creditors filed a supplement to their application for an order to show cause to provide the court with a copy of a relevant quitclaim deed and the "Notice to Judgment Creditor Request for Application for Order for Sale of Dwelling (CCP 704.750)." There, however, is no proof of service showing this supplement was served on anyone. This document supplements the application for an order to show cause and therefore must be served just like the application. Based on the foregoing service deficiencies, the hearing on the order to show cause is CONTINUED as stated above for Creditors to make proper service as required by Code of Civil Procedure section 704.770 and to give notice of this ruling. All proofs of service must be filed at least 10 days before the continued hearing date. The court finds good cause to conduct the hearing on the order to show cause beyond the 45-day period established by Code of Civil Procedure section 704.770. Creditors' counsel is ordered to give notice of this ruling
6.	<i>In re: 5353 Barrett Circle, Buena Park, California 90621</i> 2026-01557436	Before the court is the petition regarding unresolved claims and deposit of undistributed surplus proceeds of trustee's sale that petitioner Western Progressive, LLC (Petitioner) filed on March 20, 2026. The petition is filed under Civil Code section 2924j following a trustee's sale pursuant to a deed of trust that Petitioner conducted on December 18, 2024, regarding the property located at 5353 Barrett Circle, Buena Park, California 90621 (Property). After paying off the trust deed and all senior liens, and after deducting its fees and expenses, Petitioner seeks to deposit the surplus funds of \$396,426.41 with the court and be discharged from responsibility for the

	distribution of those funds because, after due diligence, Petitioner is unable to determine to whom these surplus funds should be distributed. Specifically, after giving notice to all parties of record who potentially could have a claim to some or all of the surplus funds, including Donna Chang, the owner of the Property immediately before the sale, Petitioner did not receive any valid claim to the surplus funds. The court finds the petition complies with the notice and other requirements of section 2924j, and Petitioner should be allowed to deposit the surplus funds with the court and be discharged. Accordingly, the petition is GRANTED, and Petitioner is ordered to deposit all surplus fund relating to the trustee's sale for the Property with the clerk of the court forthwith. Upon deposit of the funds with the clerk of the court, Petitioner shall be discharged of further responsibility for the distribution of the sale proceeds as provided in Civil Code section 2924j(c). Upon deposit with the clerk of the court, the surplus funds shall stay on deposit with the clerk until such time as a claim to the funds is duly asserted, or until the funds escheat to the court. (Gov. Code, § 68084.1(a) ["Except as otherwise provided by law, any money, excluding restitution to victims, that has been deposited with a superior court, or that a superior court is holding in trust for the lawful owner, in a court bank account or in a court trust account in a county treasury, that remains unclaimed for three years shall become the property of the superior court if, after published notice pursuant to this section, the money is not claimed or no verified complaint is filed and served"]; Code Civ. Proc. § 1502(a)(3) ["This chapter does not apply to any of the following: [¶] . . . [¶] (3) Any property in the official custody of a court if the property may be transferred to the Trial Court Operations Fund under Section 68084.1 of the Government Code"] Code Civ. Proc., § 1519 ["All tangible personal property located in this state, and, subject to Section 1510, all intangible personal property, held for the owner by any government or governmental subdivision or agency, that has remained unclaimed by the owner for more than three years escheats to this state"].) The court hereby sets a hearing to consider any and all claims to these surplus funds for THURSDAY, SEPTEMBER 10, 2026, AT 2:00 P.M., IN DEPARTMENT C23. Any claims to the surplus funds must be filed with the court and served on all parties at least 15 days before the foregoing hearing date. <u>The clerk of the</u>
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		<u>court is directed to give notice of this hearing by first class mail to all claimants identified in attachment 8 to the petition.</u> Petitioner's counsel is ordered to give notice of this ruling.
7.	Arnel Management Company vs. Jouini 2021-01223045	Before the court is the hearing on the order to show cause as to why this case should not be dismissed as to defendant Abdelhedi Jouini (Jouini) for failing to serve Jouini within three years of filing the complaint. Plaintiff Arnel Management Company (Plaintiff) commenced this action against Jouini and the other defendants on September 24, 2021. On November 2, 2021, Plaintiff took Jouini's default, and on August 3, 2023, the court entered a default judgment against Jouini. On May 14, 2026, the court granted Jouini's motion to set aside and vacate the default and default judgment entered against him on the ground they were void because Plaintiff never validly served Jouini. In granting that motion, the court set the current order to show cause and ordered Plaintiff to file and serve any response or objection to the order to show cause by June 29, 2026. Plaintiff has not filed any response to the court's order to show cause. Pursuant to Code of Civil Procedure section 583.210, the summons and complaint in an action must be served on the defendant within three years after the action is commenced as to that defendant. Only valid service complies with the requirements of section 583.210. (<i>Dill v. Berquist Construction Co.</i> (1994) 24 Cal.App.4th 1426, 1433.) Here, as the court found on Jouini's motion, Plaintiff's service on Jouini was not valid and did not confer jurisdiction over him. Nearly five years have elapsed since Plaintiff commenced this action against Jouini and no valid service has been achieved. Pursuant to Code of Civil Procedure section 583.250, the court is required to dismiss an action against any defendant who is not served within three years. There are various statutory provisions that will toll the three-year period in certain circumstances or otherwise excuse the failure to serve within that period. The burden is on the plaintiff to identify and establish the applicability of any tolling provision or excuse. (<i>Putnam v. Clague</i> (1992) 3 Cal.App.4th 542, 549.) Plaintiff did not file any response to the court's order to show cause and therefore has not established any tolling or excuse for failing to time serve Jouini.

		Accordingly, this action is hereby DISMISSED WITHOUT PREJUDICE as to Jouini for failure to serve within three years. (Code Civ. Proc., § 581, subd. (b)(4).) The clerk is directed to give notice of this ruling to all parties.
8.	<i>Kirk vs She</i> <i>2026-01573506</i>	Before the court is the hearing on the order to show cause why an order for sale of dwelling should not issue relating to property located at 24664 Las Patranas, Yorba Linda, California 92887, and owned by judgment debtor the Peter Seh Living Trust 2001, dated September 13, 2001 (Debtor). The order to show cause was entered on June 4, 2026, based on the application of judgment creditors Benjamin Kirk and Butterfield Property LLC (collectively, Creditors). As more fully set forth below, the hearing on the order to show cause is CONTINUED TO THURSDAY, SEPTEMBER 24, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for Creditors to establish proper service of all necessary documents in accordance with Code of Civil Procedure section 704.770. The court previously found Creditors' application satisfied the statutory requirements and therefore the court entered the order to show cause and instructed Creditors to give notice. (Code Civ. Proc., §§ 704.750, 704.760, 704.770; see ROA 17.) The court specifically stated in the order that all parties must be served as required by Code of Civil Procedure section 704.770. Here, Creditors fail to establish proper service in accordance with Code of Civil Procedure section 704.770. That code section required Creditors to serve (1) a copy of the order to show cause, (2) a copy of the application of the judgment creditor for the order to show cause, and (3) a copy of the notice of the hearing in the form prescribed by the Judicial Council. Those documents must be served on Debtor either personally or by mail. Those same documents also must be personally served on any occupant of the dwelling or, if there is no occupant present at the time service is attempted, the documents must be posted in a conspicuous place at the dwelling. Creditors filed a proof of service showing they posted copies of the application for order of sale and the order to show cause at the property. The proof of service, however, fails to show Creditors posted or otherwise served the notice of the hearing in the form prescribed by the Judicial Council.

		As for service on Debtor, Creditors filed a document entitled "Proof of Service by Mailing of Order to Show Cause." The documents attached, however, are receipts for mailing; they are not proofs of service. Those receipts do not comply with the requirements of the Code of Civil Procedure for proofs of service and they do not identify what documents were served (as noted above, three documents had to be served). Moreover, they do not show the capacity in which the persons identified were served. The Debtor is a trust, and therefore must be served by service on the trustee in that capacity. The court further notes, on July 9, 2026, Creditors filed a supplement to their application for an order to show cause to provide the court with a copy of a relevant quitclaim deed and the "Notice to Judgment Creditor Request for Application for Order for Sale of Dwelling (CCP 704.750)." There, however, is no proof of service showing this supplement was served on anyone. This document supplements the application for an order to show cause and therefore must be served just like the application. Based on the foregoing service deficiencies, the hearing on the order to show cause is CONTINUED as stated above for Creditors to make proper service as required by Code of Civil Procedure section 704.770 and to give notice of this ruling. All proofs of service must be filed at least 10 days before the continued hearing date. The court finds good cause to conduct the hearing on the order to show cause beyond the 45-day period established by Code of Civil Procedure section 704.770. Creditors' counsel is ordered to give notice of this ruling
9.	<i>Highland Mariposa Homeowners Association vs. Hoffman</i> 2026-01560973	Hearing VACATED and STATUS CONFERENCE SET based on notice of stay filed on May 6, 2026
10.	<i>M. vs. Huntington Beach Union High School District</i> 2026-01563406	Before the court is the petition by B.M., a minor by and through his guardian, Brian Maclyman (Petitioner), for relief from Government Code section 945. As more fully set forth below, the petition is CONTINUED TO OCTOBER 1, 2026, AT 2:00 P.M., IN DEPARTMENT C23, for proper service and notice. Government Code section 946.6, subdivision (d), states, "A copy of the petition and a written notice of the time and place of hearing shall be served before the hearing as

		prescribed by subdivision (b) of Section 1005 of the Code of Civil Procedure on (1) the clerk or secretary or board of the local public entity, if the respondent is a local public entity” Here, the petition was not served on the “clerk or secretary or board of the local public entity.” Instead, the proof of service shows the petition and supporting declaration were served on the “Insurance Department” for respondent Huntington Beach Union High School District (Respondent). That fails to comply with section 946.6, subdivision (d), and Respondent has not filed any opposition or taken any action to waive this defect or otherwise show it was properly served with the petition. Moreover, Petitioner has not filed any notice or proof of service showing Petitioner gave Respondent notice of today’s hearing on the petition. The court set the hearing and gave notice to Petitioner. Respondent, however, has not yet appeared in this action and therefore has no address of record. As such, the court could not give Respondent notice of today’s hearing. It was Petitioner’s responsibility to provide such notice. California Rules of Court, rule 3.1300(c) requires a proof of service to be filed at least five court days prior to the hearing. Based on the foregoing, the hearing on the petition is CONTINUED as set forth above to allow Petitioner to correct the service issues discussed above and provide proof of service. Petitioner’s counsel is ordered to give notice of this ruling.
11.	<i>Interinsurance Exchange of the Automobile Club v. Tyler</i> 2026-01565527	OFF CALENDAR; Hearing erroneously set.
12.	<i>David Haller vs. Gladys Haller</i> 2025-01520273	Before the court is the motion to vacate sister-state judgment filed on May 1, 2026, by defendant and judgment debtor Gladys Haller (Gladys). As more fully set forth below, the motion is DENIED. By this motion, Gladys seeks to vacate the sister-state judgment this court entered in favor of plaintiff and judgment creditor David Haller (David) on October 20, 2025. The sister-state judgment is based on a Virginia judgment entered on or about June 6, 2025. Gladys brings the motion pursuant to Code of Civil Procedure section 1710.40, arguing the sister-state judgment must be

	set aside because it is based incorrect interest calculations and the underlying Virginia judgment was obtained by fraud and mistake that prevented a fair trial. Code of Civil Procedure section 1710.40, subdivision (b), requires any motion to vacate a sister-state judgment to be made within 30 days after service of notice of entry of the judgment: "Not later than 30 days after service of notice of entry of judgment pursuant to Section 1710.30, proof of which has been made in the manner provided by Article 5 (commencing with Section 417.10) of Chapter 4 of Title 5 of Part 2, the judgment debtor, on written notice to the judgment creditor, may make a motion to vacate the judgment under this section." Gladys's motion is untimely under section 1710.40, subdivision (b). David presented evidence showing notice of entry of judgment was personally served on Gladys on March 27, 2026. (ROA 27, Kluewer Decl., ¶ 2, Ex. 1.) Gladys has not disputed that is when she was served. Gladys filed this motion on May 1, 2026, and she served it on David's counsel on May 6, 2026. (ROA 17; ROA 27, Kluewer Decl., ¶ 3, Ex. 2.) That is 35 days and 40 days after service of notice of entry of the sister-state judgment. Accordingly, Gladys failed to seek relief within the required 30-day period after service of notice of entry of judgment and her motion is untimely. Moreover, the motion fails to show a valid basis for relief regardless of its timeliness. On a section 1710.40 motion to vacate a sister-state judgment, the permissible scope of inquiry is limited to whether the forum court had fundamental jurisdiction in the case. (<i>Silbrico Corp. v. Raanan</i> (1985) 170 Cal.App.3d 202, 208 ["[T]he law is well established that upon a claim that a foreign judgment is not entitled to full faith and credit, the permissible scope of inquiry is limited to a determination of whether the court of forum had fundamental jurisdiction in the case"].) "Therefore, the judgment of a sister state must be recognized in a California court if that sister state had jurisdiction over the parties and the subject matter and all interested parties were given reasonable notice and opportunity to be heard." (<i>Ibid.</i>) Gladys argues the judgment should be set aside because she did not comprehend the agreement she signed that lead to the original Virginia judgment. She suggests her own attorney pressured her to sign the agreement. Gladys, however, presents no evidence to show David or his attorney engaged in any misconduct of any kind.
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		Moreover, she presents no argument or evidence regarding or disputing the later 2025 judgment on which the sister-state judgment is based. As for her challenge to the interest calculations, they are based on the contention she made payments towards the earlier Virginia judgment. The 2025 Virginia judgment on which the sister-state judgment is based, however, is for a lesser amount. Indeed, as David points out, 2025 Virginia judgment and the sister-state judgment give Gladys credit for payments she made before the 2025 Virginia judgment was entered. Gladys does not identify any payments made after the 2025 Virginia judgment was entered. Gladys's claims of inability to pay the judgment is not a basis for setting it aside. Simply stated, she has not established any basis for setting aside the sister-state judgment even if her motion was timely. Based on the foregoing, the motion is DENIED. David's counsel is to give notice of this ruling.
13.	<i>Signature Collection Properties, LLC vs. Academy West Investments, LLC</i> 2021-01206266	Before the court are the following two motions filed by plaintiff and judgment creditor Signature Collection Properties, LLC (Creditor): (1) motion to compel defendant and judgment debtor Versity Investments, LLC (Versity) to provide further responses to post-judgment special interrogatories, set two, and request for monetary sanctions, and (2) motion to compel Versity to provide further responses to post-judgment request for production of documents, set two, and request for monetary sanctions. <u>Motion No. 1 (Special Interrogatories)</u> By this motion, Creditor seeks to compel Versity to provide further responses to special interrogatory nos. 52-153. Code of Civil Procedure section 708.020 authorizes a judgment creditor to propound special interrogatories on a judgment debtor in aid of its efforts to enforce the judgment. Section 708.020 generally allows the judgment creditor to propound interrogatories in the same manner as provided during the regular course of the prejudgment litigation and requires the judgment debtor to respond in the same manner as required during the regular course of the prejudgment litigation. Section 708.020 allows the judgment creditor to propound multiple sets of post-judgment interrogatories, but may not propound any set within 120 days after the judgment debtor has responded to a prior set. Significantly, section 708.020, subdivision (d), states, "The limitation provided by Chapter 13 (commencing with Section 2030.010) of Title 4 of Part 4 on the number of interrogatories that may be

	propounded applies to each set of interrogatories propounded from time to time pursuant to this section, but does not apply cumulatively to interrogatories propounded by the judgment creditor to the judgment debtor.” In other words, the rule of 35 applies to each set of post-judgment interrogatories, not cumulatively among multiple sets. Here, Versity provided objection-only response to each of the interrogatories included in this set. Starting with interrogatory no. 87, Versity added the objection Creditor exceeded the limit of 35 interrogatories without a declaration of necessity. At some point after the motion was filed, and before the opposition was due, Versity apparently served supplemental responses to some of the interrogatories included in set two. No copy of those supplemental responses, however, has been provided. The issues presented are (1) was Creditor entitled to propound more than 35 interrogatories, (2) do Versity’s supplemental responses moot this motion or otherwise warrant a continuance, and (3) did Versity state any valid objections to the interrogatories. As the parties recognize, Creditor generally is limited to 35 specially prepared interrogatories per set of post-judgment interrogatories. As with pre-judgment interrogatories, Creditor may exceed 35 interrogatories if the interrogatories are accompanied by a declaration of necessity. (Code Civ. Proc., §§ 2030.030, 2030.050.) If the propounding party exceeds the limit of 35 without providing a declaration of necessity, the responding party may answer the first 35 interrogatories and then simply object to the balance. (Code Civ. Proc., § 2030.030, subd. (c).) If the propounding party serves a declaration of necessity with a set of interrogatories exceeding 35 questions, the responding party must bring a motion for a protective order if it believes the declaration of necessity is insufficient to justify propounding the additional interrogatories; merely objecting is not sufficient. (Code Civ. Proc., §§ 2030.090, 2030.040; <i>Catanese v. Superior Court</i> (1996) 46 Cal.App.4th 1159, 1165, disapproved on other grounds by <i>Lewis v. Superior Court</i> (1999) 19 Cal.4th 1232.) Here, Creditor included a declaration of necessity with the special interrogatories, but that declaration was not signed and Creditor took no action to correct that deficiency. For example, it has not served a signed declaration or re-propounded the interrogatories with a signed declaration. Accordingly, the question is whether the inclusion of an
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		unsigned declaration allowed Versity to act as though there was no declaration of necessity (and simply object to those interrogatories that exceeded 35) or whether Versity was required to bring a motion for a protective order to challenge the adequacy of the declaration. Versity argues a declaration that is not properly executed has no evidentiary value and therefore is the equivalent of no declaration at all. Creditor, however, argues a case regarding substantial compliance. None of the parties cite or argue any case addressing this scenario of a missing signature on a declaration of necessity or discovery. Given we are in the discovery context, and there is clear authority holding unverified discovery responses are the equivalent of no response at all (Weil & Brown, Cal Prac. Guide: Civ. Proc. Before Trial (The Rutter Group 2026) at ¶ 8:1113 citing <i>Appleton v. Superior Court</i> (1988) 206 Cal.App.3d 632, 636), the court finds the failure to sign the declaration of necessity is the equivalent of no declaration at all – especially when Creditor took no action to attempt to address this deficiency. Accordingly, the court finds Versity’s objection to interrogatory nos. 87-153 on this ground is well founded, and therefore the motion is DENIED as to these interrogatories. Next, it is undisputed Versity served supplemental responses to at least the first 35 interrogatories after the motion was filed. Versity argues those responses moot the motion or at least require a continuance for the parties to meet and confer regarding their adequacy. Creditor, however, argues the supplemental responses are inadequate and further responses should be ordered regardless. When a responding party provides supplemental responses to interrogatories while a motion to compel further responses to those interrogatories is pending, the trial court is vested with the discretion to select from a variety of options ranging from examining the supplemental responses to see if they are adequate, continuing the hearing and ordering the parties to meet and confer regarding those responses, and denying the motion as moot and imposing monetary sanctions, to name a few options. (See <i>Sinaiko Healthcare Consulting, Inc. v. Pacific Healthcare Consultants</i> (2007) 148 Cal.App.4th 390, 409.) Creditor argues the court should grant the motion despite the supplemental responses because those responses also are deficient and provide essentially zero substantive information. The problem with that position is that no one
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	has provided the court with a copy of the supplemental responses so the court can see what responses were supplemented and the adequacy of those supplemental responses. Accordingly, the court DENIES the motion as MOOT as to interrogatory nos. 52-86, and orders the parties to meet and confer regarding the adequacy of the supplemental responses. Although the court denies the motion as moot, it nonetheless reminds Versity of its obligations in responding to interrogatories. Each answer in the response must be "as complete and straightforward as the information reasonably available to the responding party permits. If an interrogatory cannot be answered completely, it shall be answered to the extent possible." (Code Civ. Proc., § 2030.220, subds. (a), (b).) "Parties must state the truth, the whole truth, and nothing but the truth in answering written interrogatories." (<i>Scheidig v. Dinwiddie Const. Co.</i> (1999) 69 Cal.App.4th 64, 76.) Where the question is specific and explicit, an answer that supplies only a portion of the information sought is improper. It is also improper to provide "deftly worded conclusionary answers designed to evade a series of explicit questions." (<i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 783.) "If the responding party does not have personal knowledge sufficient to respond fully to an interrogatory, that party shall so state, but shall make a reasonable and good faith effort to obtain the information by inquiry to other natural persons or organizations, except where the information is equally available to the propounding party." (Code Civ. Proc., § 2030.220(c); <i>Regency Health Services, Inc. v. Superior Court</i> (1998) 64 Cal.App.4th 1496, 1504.) Objections must be specific. A motion to compel lies where objections are "too general." (Code Civ. Proc., § 2030.300, subd. (a)(3); see <i>Korea Data Systems Co. Ltd. v. Superior Court</i> (1997) 51 Cal.App.4th 1513, 1516.) The grounds for objecting to interrogatories are even more limited than the grounds for objecting to deposition questions. There is less concern as to the form of questioning because the answering party will have the assistance of counsel in preparing responses. (<i>Greyhound Corp. v. Superior Court</i> (1961) 56 Cal.2d 355, 392, fn. 16 [superseded by statute on other grounds].) For example, an objection an interrogatory is ambiguous, confusing, or overbroad often will not be sustained unless the question is totally unintelligible. The responding party owes a duty to respond in good faith as best it can. (See <i>Deyo v. Kilbourne</i> (1978) 84 Cal.App.3d 771, 783.) Indeed, an objection the time
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	period covered by an interrogatory is overbroad does not allow the responding party to provide any response at all. Rather, it should provide a response covering what it believes to be a reasonable time period. Similarly, a responding party cannot avoid the obligation to respond by misconstruing common language. Instead, it should respond based on its reasonable understanding of the terminology. Based on the foregoing, the court DENIES the motion to compel further responses as to all the special interrogatories at issue. That leave just the sanctions request on this motion. The court finds sanctions are appropriate and warranted in connection with this motion because Versity has failed to convince the court it acted with substantial justification. Although the court finds the objection to those interrogatories that exceed 35 to be appropriate, the objection only responses to the first 35 were not. Accordingly, the request for sanctions is GRANTED as against Versity and its counsel of record, jointly and severally. Creditor has made a combined request as to the amount of sanction on this and the motion below, and therefore the court will address the amount of sanctions below. <u>Motion No. 2 (Documents Requests)</u> By this motion, Creditor seeks to compel Versity to provide further responses to document request nos. 59-173. "[Code of Civil Procedure] Section 708.030, subdivision (a) is unambiguous. In plain terms, it places but two limitations on the scope of [post-judgment] requests for production of documents. First, the document requested must be 'in the possession, custody, or control of the party on whom the demand is made.' [Citation.] Second, the document requested must have 'information to aid in enforcement of the money judgment.' [Citation.] If the document requested is 'in the possession, custody, or control of the party on whom the demand is made' and has 'information to aid in enforcement of the money judgment,' then the document is subject to discovery under section 708.030, regardless whether the document relates to the judgment debtor or to third parties." (SCC <i>Acquisitions, Inc. v. Superior Court</i> (2015) 243 Cal.App.4th 741, 752.) "Documents that are in the possession, custody, or control of the judgment debtor are not third party documents: they are judgment debtor documents, and discovery aimed to obtain them is not third party discovery. Section 708.030 does not permit the judgment
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		creditor to obtain documents that are not in the possession, custody, or control of the judgment debtor.” (<i>Id.</i> at pp. 752-53.) “As one practice guide notes, ‘An inspection demand may provide the judgment creditor with documents disclosing the debtor’s assets or earnings (e.g., tax returns, financial statements, payroll stubs, real property deeds, stock certificates, passbooks, deposit account statements, bonds, trust deeds, automobile ownership certificates (“pink slips”), promissory notes, etc.) [¶] An inspection demand is cheaper than a judgment debtor examination and requires less preparation time. It can also be used to “set up” a later examination of the judgment debtor.’ (Schwartz & Ahart, Cal. Practice Guide: Enforcing Judgments & Debts (The Rutter Group 2006) ¶ 6:1391.6, p. 6G-29 (hereafter Schwartz); see generally 1 Debt Collection Practice in Cal. (Cont.Ed.Bar 2d ed. 2006) Discovery in Debt Collection Actions, §§ 5.22, 5.29, pp. 298-299, 303-304.)” (<i>Lee v. Swansboro Country Prop. Owners Assn.</i> (2007) 151 Cal.App.4th 575, 581.) The party to whom an inspection demand is directed must respond separately to each item in the demand by providing one of the following responses: (1) a statement the party will comply by the date set for inspection with the particular demand for inspection, (2) a statement the party lacks the ability to comply with the particular demand, or (3) an objection to all or part of the demand. (Code Civ. Proc., § 2031.210, subd. (a).) What is required of each of these types of responses is statutorily defined. For example, to be effective and code-compliant, an objection to all or part of a demand must (1) identify with particularity the specific document or evidence demanded as to which the objection is made, and (2) set forth the specific ground for objection, including claims of privilege or work product protection. (Code Civ. Proc., § 2031.240, subd. (b).) After this motion was filed, Versity served supplemental responses to some of the requests, but not all of them. As with the special interrogatories, neither side has provided a copy of those responses. Creditor again argues the supplemental responses are inadequate and the court should grant the motion in its entirety. Without the supplemental responses, however, the court is unable to evaluate those responses. For example, the court cannot determine whether they are adequate, code-complaint
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	responses or whether they are woefully inadequate and were served solely to delay matters. Accordingly, the court denies the motion as moot as to the demands for which Versity provided supplemental responses. Specifically, from what the court can determine, Versity served supplemental responses to <u>demand nos. 59, 61-62, 65-66, 77, 79, 84-86, 88, 103, 111-114, 117, 119, and 157</u>. The court therefore DENIES the motion as MOOT as to these demands and orders the parties to meet and confer regarding the adequacy of the supplemental responses. <u>Demand no. 60</u> seeks Versity's current employee list. Creditor has not shown this item is relevant and the requested documents invade non-party privacy. The motion there is DENIED as to this demand. <u>Demand no. 69</u> requests Versity's "rent roll(s)." Creditor has not defined "rent roll(s)" and as such it is vague and ambiguous. Additionally, Versity indicates "rent rolls" may include tenant identities, which would not be relevant to enforcing the judgment and which may invade third-party privacy rights. Demand no. 108 seeks documents regarding all outstanding rents owed to Versity and appears to be more appropriately focused on relevant information. The motion there is DENIED as to demand no. 69. <u>Demand no. 121</u> requests documents sufficient to identify any active litigation to which Versity is a party. Objections regarding attorney-work product and attorney client privilege are likely applicable to at least some of the documents responsive to this demand. Moreover, by essentially seeking all documents relating to ongoing litigation, this demand is overbroad. Accordingly, this demand is limited to the operative pleadings in all active litigation involving Versity as a party. As so limited, the motion is GRANTED as to this demand but otherwise DENIED as to this demand. <u>Demand nos. 63-64, 67-68, 70-76, 78, 80-83, 87, 89-102, 104-110, 115-116, 118, 120, 122-156, and 158-173</u> seek a variety of documents related to Versity's financials and assets, which are relevant to determine the assets Versity as a judgment debtor has, which could be used to satisfy the judgment. They also are relevant to showing where Versity might have transferred assets to delay or inhibit payment of the judgment debt. Versity has failed to meet its burden to establish the validity of its objections. The court finds the requests are sufficiently specific and narrowly tailored to determine Versity's ability to pay the
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		judgment. Further, if these documents are within the possession, custody, or control of Versity, they can be produced. Versity has failed to produce any evidence to support its unduly burdensome objection. Regarding the overbroad objection related to time. Versity was apparently formed in 2018. The complaint in this matter was filed in June 2021, with judgment being entered in September 2024. Given the complaint made allegations of misdeeds going back to at least February 2019, demands seeking documents from the date of Versity's formation to the present are relevant to determining where money went during that time frame and the potential current location of funds to pay the judgment. The objection is overruled. The only other potential objection that might apply to these demands are the attorney work product and attorney-client privileges. Most of the requested documents do not appear as though they would involve attorney work product as they are financial related documents. Demands such as nos. 127 and 168-169, however, might contain attorney work product. To the extent those agreements have been produced to third parties, the work-product designation would not be applicable. As for documents that remain under the attorney work product privilege and attorney-client privilege, responsive documents covered under those privileges are permitted to be withheld, but they must be identified in a privilege log under Code of Civil Procedure section 2031.240. Based on the foregoing the motion is GRANTED as to <u>demand nos. 63-64, 67-68, 70-76, 78, 80-83, 87, 89-102, 104-110, 115-116, 118, 120, 122-156, and 158-173</u> as noted. Versity is ordered to serve further, verified, code-complaint responses to these demands within 20 days of service of notice of this rule. All responsive documents are to be produced within 30 days. As for sanctions, the court again finds Versity failed to establish it acted with substantial justification, and therefore the request for sanctions is GRANTED as against Versity and its counsel of record, jointly and severally. As noted above, Creditor has made a combined sanctions request seeking a total of \$5,000 for these two motions. The declaration in support of the request states Creditor's counsel bills at \$800 per hour and spent six hours on these two motions. The court finds both the rate and number of hours to be reasonable. Six hours times \$800 per hour, however, equals \$4,800. Accordingly, sanctions are
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		awarded in the amount of \$4,800 payable to Creditor's counsel within 30 days of service of notice of this ruling. Creditor's counsel is ordered to give notice of these rulings.
14.	<i>American Family Connect Property and Casualty Insurance Company vs. Garcia</i> 2026-01541403	OFF CALENDAR based on notice of withdrawal of motions filed on June 22, 2026
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